

****September 23, 2024****

****Sanction for GDPR Violation****

The National Authority for the Supervision of Personal Data Processing completed an investigation in September 2024 regarding the operator PPC ENERGIE MUNTENIA S.A. and found a violation of the provisions of Article 12 paragraph (3) of Regulation (EU) 2016/679 (GDPR), in relation to Article 17 of the same regulation.

As such, the operator was sanctioned with a fine amounting to 9,947.6 lei (equivalent to 2,000 EURO). The investigation was initiated following a complaint in which the petitioner informed us that PPC ENERGIE MUNTENIA S.A. (formerly ENEL ENERGIE MUNTENIA S.A.) did not provide a response to the request through which they exercised their right to erasure of personal data, as regulated by Article 17 of the GDPR.

During the investigation, it was found that the operator did not present evidence regarding the transmission of a response to the petitioner's request within the timeframe established by Article 12 paragraph (3) of the GDPR, namely within one month or a maximum of three months from the receipt of the request, with the response being communicated after the expiration of the aforementioned legal deadline.

The National Authority for the Supervision of Personal Data Processing also imposed a corrective measure on the operator to ensure, in all cases, compliance with the applicable provisions regarding the prompt analysis and resolution of requests submitted by data subjects under the GDPR (Articles 12-22) and to communicate responses to them within the legal deadlines, including through periodic testing of dedicated applications.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****